

State of Vermont
Secretary of State
Office of Professional Regulation
Board of Allied Mental Health Practitioners

In re: Michael Linn

Docket Nos. 2026-82 & 83

License No. 068.0134603

Appearances:

For the State: Zoe Newman, Esq.

For the Respondent: James M. Cooley, Esq.

Presiding Officer: George K. Belcher

Board Members:

Tammy Austin, Family Therapist, Chair

Judith Wernecke, Public Member

Dana Povermant, LCMHC, *ad hoc* member

Robert Wubbenhorst, LCMHC

James Huitt, PhD Psychologist, *ad hoc* member

Caitlyn Pippen, Public Member

Exhibits:

State Exhibit 1: Respondent's self-report

Respondent Exhibit B: Text chain 1/24/23 to 1/30/23

Summary Suspension Order

This matter came before the Board of Allied Mental Health Practitioners on a Request for a Summary Suspension. The hearing was held on May 21, 2026, with the Attorneys for the State and the Respondent, the witnesses, the Respondent and the Board members all participated by telephone, in person, or via electronic means pursuant to the Office of Professional Regulation Rules. The Respondent was present and represented by counsel. There were no objections as to notice.

Findings of Fact

Based on the evidence presented at the hearing, the Board finds as follows:

1. The Respondent holds an active license as a Licensed Clinical Mental Health Counselor and he is currently practicing. His current license was issued in May of 2022
2. The Respondent operated a private practice of counselling in the Hinesburg area. He commenced his private practice in August of 2022 and served between 18-24 clients with weekly sessions.
3. In October of 2022 the Respondent began therapy with a female client (hereinafter "the Client"). In December of 2022 the Respondent began to have romantic feelings of attraction toward the Client. When this happened, the Respondent contacted a colleague, a supervisor, and a good friend to discuss the situation.
4. During the treatment relationship, the Client and the Respondent shared a "google document" which acted as a method of communication and as a part of their therapy work. In their communication, both the Client and the Respondent expressed that they had romantic feelings toward each other. While the Respondent may have told the Client during the treatment relationship that the boundaries of his profession did not allow him to have a romantic relationship with a client, he did not end the counseling relationship, he did not insist that the Client secure another therapist, and he did not self-report the issue to OPR at that time. By April 2023, the Respondent was very much "in love" with the Client.
5. The google document was discovered by a colleague of the Respondent and the Respondent then terminated the Counseling relationship with the Client in May of 2023. This was done the same day as the google document was discovered by a colleague. During this last session, the Respondent kissed the Client.
6. In September of 2023, the Respondent began having a sexual relationship with the former Client which continued until July of 2025.
7. On April 5, 2026, the OPR Investigative Staff received a "self-report" from the Respondent. (State Exhibit 1) In the self-report, the Respondent admitted:
 - a. That the Respondent had had a dual relationship with the Client and that this relationship had been harmful to her "emotionally, socially, and occupationally" and "severely impacted her life and the life of her family";
 - b. That the Respondent's report of unprofessional conduct was being made with "profound guilt and shame;"
 - c. That he was aware that a colleague had made a report about him to OPR; and
 - d. That a lawsuit had been filed by the Client.

8. Since the self-report was filed with OPR, the Respondent has only accepted new male clients. He is currently seeing about six (6) clients, two of whom are female (from his prior practice).

Conclusions of Law

1. The Board has authority to discipline the license of people licensed by the Allied Board of Mental Health Practitioners upon a finding of unprofessional conduct. 3 VSA Sec. 129(a), 3 VSA Sec. 129a, and 26 VSA Chapter 65 and the Administrative Rules of the Board of Allied Mental Health Practitioners. If the Board finds that the public health, safety or welfare imperatively requires emergency action, the Board may order a summary suspension of the license of the Respondent pending further proceedings. 3 VSA Sec. 814(c).
2. Vermont law provides that it is a violation of professional conduct for a Licensed Clinical Mental Health Counselor to engage in sexual conduct with a client with whom the licensee has had a professional relationship within the previous five years. 26 VSA Sec. 3271(a)(4). [Violation One]. Although the counselling relationship may have terminated in May of 2023, from September of 2023 through July of 2025 the Respondent was involved with the Client in a romantic and sexual relationship. The Respondent violated this section of the law.
3. Vermont law provides that it is a violation of professional conduct for a Licensed Clinical Mental Health Counselor to enter into an additional relationship with a client which might impair the counselor's objectivity or otherwise interfere with the counselor's professional obligations. 26 VSA Sec. 3271(a)(6) [Violation Two] In this case it is undisputed that the Respondent expressed that he had romantic feelings for the Client shortly after the counselling relationship started and that those feelings continued and eventually caused him to "love" the Client as of April of 2023. The "dual relationship" and interference with the counselor's objectivity and interference with his professional obligations are admitted in Exhibit One.
4. Vermont professional statutes prohibit a licensed professional from engaging in conduct of a character likely to harm the public. 3 VSA Sec. 129a(a)(28) [Violation Three]. Maintenance of a romantic relationship with a client, where trust and objectivity are essential, is problematic based upon the ethical obligations of mental health counselors. The "harm to the public" is proven in this case by the Respondent's own admission in Exhibit One.
5. Licensed professionals are obligated to exercise independent "professional judgment" in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession. 3 VSA Sec. 129a(a)(15) [Violation Four] The evidence established that the Respondent lost his independent professional judgment when he was unable to extricate himself from the dual relationship of counselor and romantic partner. Instead, he continued to play both roles, thinking that he was able to navigate the dilemma safely. He was not able to remain uninvolved emotionally with his client. He violated this section of law.
6. The Respondent argued that he would never make the same mistake again and that he is safe to practice. He argued that his license should not be summarily suspended. The argument fails inasmuch as the Respondent testified that he never thought that he would be conflicted by romantic feelings toward a client

and did not think that this would ever become a problem for him. The fact that his conduct was brought to light by others who found out about his relationship with the Client, demonstrated to the Board that his insight, judgment and dedication to the rules of his profession, were, in this instance, impaired. His continued practice without any restrictions or limitations (as is now the case) poses a risk to the public health, safety and welfare and must be limited by emergency action (summary suspension of his license). 3 VSA Sec 814(c)

Order

The Request for Summary Suspension is **Granted**. Respondent's license is **Summarily Suspended** and shall not be subject renewal or reinstatement during the period of Summary Suspension without Board approval pending proceedings. These proceedings shall be promptly instituted and determined. 3 V.S.A. § 814(c).

SO ORDERED.

Vermont Board of Allied Mental Health Practitioners

By: Tammy Austin
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Tammy Austin, Chair

Date: 5/27/2026, 2026

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 5/28/26

Appeal Rights

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners or the Director of the Office of Professional Regulation. A party aggrieved by a final decision of a board or hearing authority may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.